



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-21-00434 / 1602 E 11th Street Zone Change
Date: January 10, 2022

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 1/10/2022
- Public Services Committee 1/19/2022
- Second reading 1/24/2022
- Public Services Committee 2/8/2022
- Third and final reading 2/14/2022

Planning Commission Recommendation:

The Planning Commission heard this item at their January 4, 2022 meeting and recommended the Governing Body approve this application by a vote of 4-0, with the condition that the Future Land Use Map for the area be amended to Mixed-use Commercial prior to (or concurrently with) the zone change application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS TO MUB MIXED-USE BUSINESS EMPHASIS FOR LAND LOCATED NORTHWEST OF THE INTERSECTION OF NATIONWAY AND LOGAN AVENUE.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on January 4, 2022, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as the south ½ of Lot 5, Block 486, of the Original City of Cheyenne, Wyoming, is hereby changed to MUB Mixed-use Business Emphasis.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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CITY OF CHEYENNE PLANNING COMMISSION

JANUARY 4, 2022

STAFF REPORT

FILE: UDC-21-00434: 1602 E 11th Street Zone Change

REQUEST: A request to rezone approximately 4,356 square feet of land from CB Community Business to MUB Mixed-use Business Emphasis

LOCATION: North of Nationway, west of Logan Avenue

OWNER: Jamie Floyd

ZONING: CB Community Business

FUTURE LAND USE: Community Business (but proposed to be Mixed-use Commercial)

PURPOSE: To allow redevelopment of a commercial property

PREPARED BY: Seth Lloyd, Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the rezoning of the South half of Lot 5, Block 486, Original City to MUB Mixed-use Business Emphasis as shown in the attached zone change map, noting that the project meets the review criteria for approval, with the following condition:

1. The Future Land Use Map for the area be amended to Mixed-use Commercial prior to (or concurrently with) the zone change application.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from CB Community Business to MUB Mixed-use Business Emphasis for one-half of an original City lot. The land is developed with a single-family home, which was converted to business use. The purpose of the proposed zone change is to allow the demolition of the house and redevelopment of the site with a new commercial building.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Community Business (Proposed to become Mixed-use Commercial)	CB (Community Business)	Single-family home (converted to a business)
North	Community Business (Proposed to become Mixed-use Commercial)	CB and MUB (Mixed-use Business Emphasis)	Single-family residential
South	Community Business (Proposed to become Mixed-use Commercial)	CB	Open space, regional transportation routes
East	Community Business (Proposed to become Mixed-use Commercial)	CB	Commercial – retail and service
West	Community Business (Proposed to become Mixed-use Commercial)	CB	Automobile repair

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure. Plan Cheyenne also encourages infill development.

The Future Land Use Designation for this property is currently Community Business; however, it is anticipated that the designation for this area of the community will be changed to Mixed-use Commercial. This is for two reasons – first, the existing development patterns and uses are more reflective of Mixed-use Commercial – and second, it is likely any redevelopment in this area would be of an urban, mixed-use nature.

The MUB zone is considered the optimal zone for areas designated Mixed-use Commercial.

Based on the policies and proposed future land use designation of the subject property, MUB Mixed-use Business Emphasis zoning is appropriate at this location.

The proposed zone change **complies** with review criterion 1, with conditions.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

This property, and most of the surrounding property, is currently zoned CB with the future land use designation of Community Business. The CB zone allows a variety of commercial uses; however, development within the CB zone is expected to be on larger parcels with more of an automobile orientation. The MUB zone allows a mix of residential and commercial uses and is expected to develop with more of an urban development pattern with higher densities and buildings built to the street. Existing development in the area includes a variety of residential uses and more urban-style commercial development.

The CB zone and MUB zones are compatible zoning districts, and the proposed MUB zone is largely compatible with CB zoning; however, when developing (or redeveloping), a CB-zoned parcel adjacent to a MUB-zoned parcel would be required to provide a landscape buffer.

The existing development patterns in this area of the community is more reflective of MUB-style development and future redevelopment in the area is likely to be better facilitated by an urban-style mixed-use zone than a suburban-style commercial zone.

Staff is processing an amendment to the Comprehensive Plan for the entire region to reflect the existing development patterns and probable redevelopment patterns.

Although all adjacent properties are zoned CB, a nearby property to the north is already zoned MUB.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The current CB zone allows a variety of commercial uses, but prohibits residential uses and requires large setbacks from streets. The proposed MUB zone allows a variety of commercial uses, residential uses, and mixed uses. The MUB zone also allows buildings to be built to the street. The MUB zone has a higher design standard than the CB zone; however, the subject property should be able to meet the required the design standards.

While surrounding properties currently zoned CB, there are multiple properties that are currently used for residential purposes and other properties which have commercial buildings built to the street.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

The existing block is the type expected for the urban-style of development anticipated for MUB zoning. CB zoning typically anticipates larger suburban-style blocks. The existing pattern is compatible with the proposed zoning and no further subdivision is expected.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The MUB zone is intended for a diverse mix of residential, retail, service, employment and civic uses integrated into a walkable, compact development pattern. The MUB District is applicable to areas where more intense development and diverse mix of uses is appropriate with a high level of pedestrian and civic amenities.

The existing development patterns, including existing uses, are reflective of the intent and applicability of the MUB zone. Residential and a variety of commercial uses are within a short distance of the subject property. Although a regional transportation route is nearby, open areas and a Greenway are also close by, providing pedestrian and civic amenities. However, the neighborhood is lacking in sidewalks, which likely will be required with future redevelopment in the area.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The existing property meets the standards of the MUB zone. The MUB zone allows a building to be brought closer to the street, while a new building on this property in the CB zone would require 25' setbacks from both streets. If the specific development proposed in association with this application is not executed, the MUB zone would allow the existing structure to return to residential use, be repurposed to mixed-use, or remain as a commercial use. The rezoning to MUB would also allow more flexibility for new construction on the property.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

Staff noted that a change from CB to MUB zoning not supported by the current Future Land Use Map designation; however, an amendment to the Future Land Use Map designation for the area appears appropriate based on both current and probable future development patterns.

The proposed zone change for the subject property **complies** with review criterion 7, with conditions.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, comments were received suggesting a Future Land Use Map amendment be pursued in concert with this application.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The MUB zone is appropriate based on the proposed future land use designation for the subject property and surrounding development patterns.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant.
2. Recommend approval of the zoning amendment subject to conditions or modifications (**Staff Recommendation**).
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

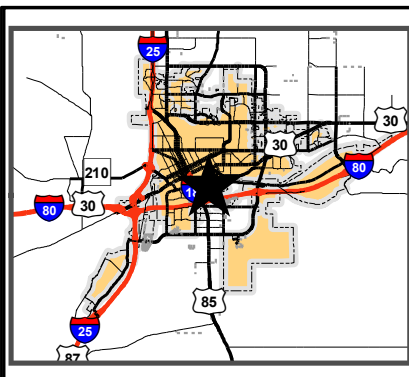
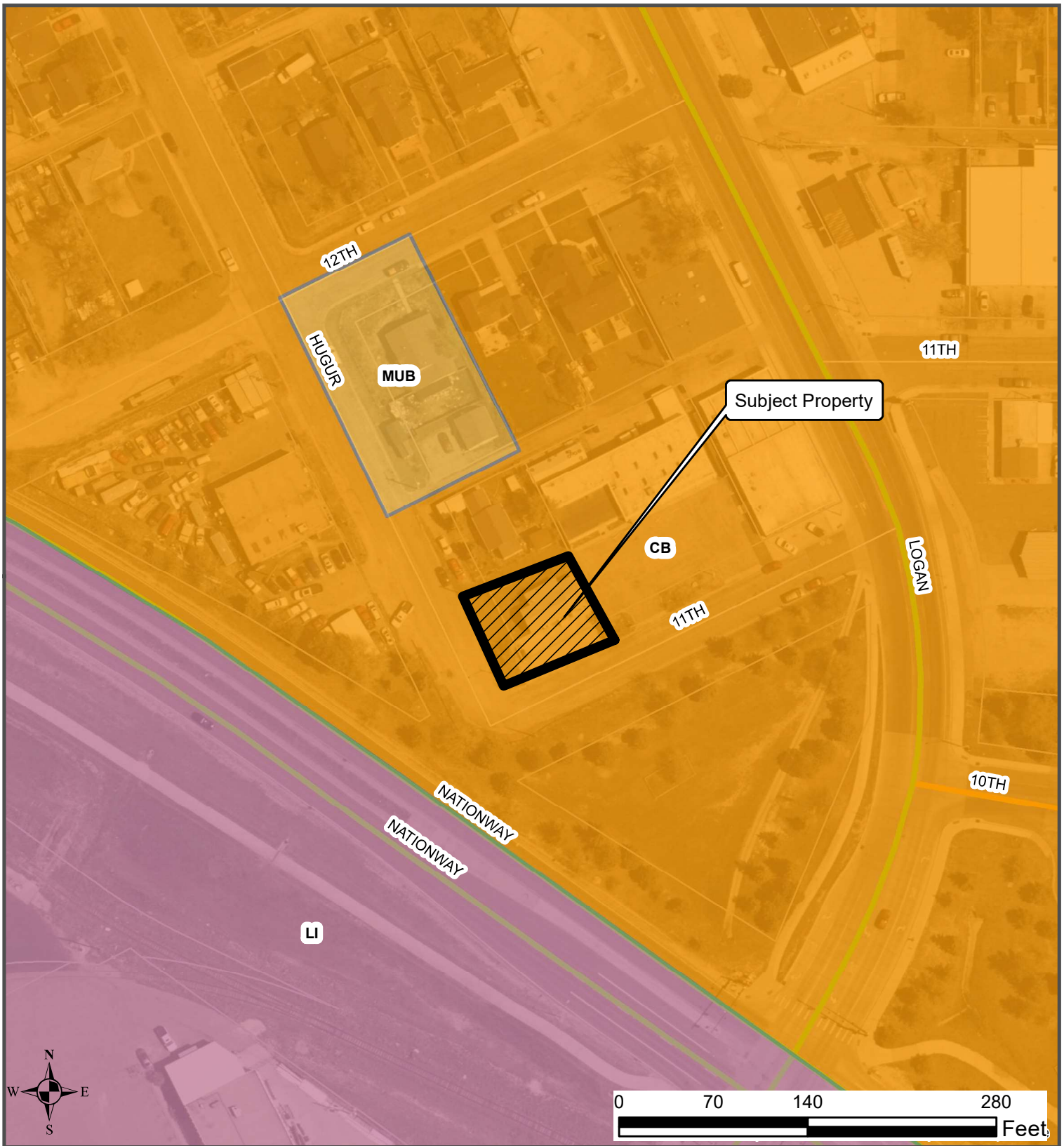
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from CB to MUB, as long as the future land use map for the region is amended to encourage Mixed-use Commercial development.

ATTACHMENTS:

1. Current Zoning Map
2. (Current) Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

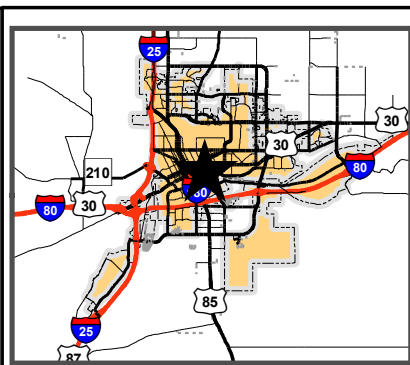
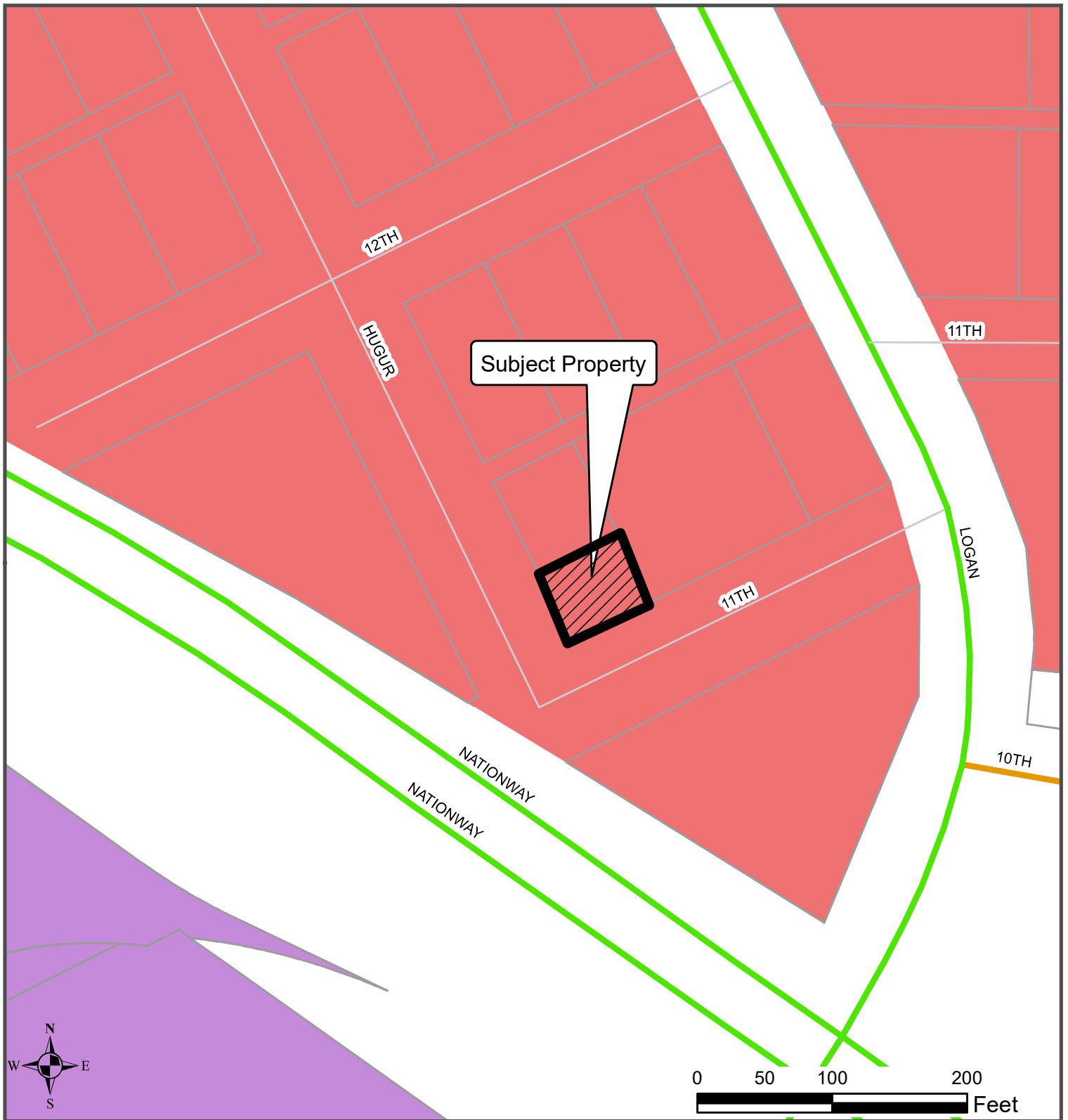


Attachment 1: Zoning Map UDC-21-00434

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt



Attachment 2: Land Use Map UDC-21-00434

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Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

Planning and Development: Zoning Map Amendment Application

Submission date: **22 November 2021, 2:38PM**

Receipt number: **22**

Related form version: **10**

General Information

Applicant Name:	Jamie Floyd
Applicant Address:	1602 E 11th St
Applicant City:	Cheyenne
Applicant State:	W
Applicant Zip Code:	82001
Applicant Phone:	307-286-6237
Applicant Email	reno31@msn.com
Representative Name:	Jamie
Representative Address:	1602 E 11th St
Representative City:	Cheyenne
Representative State:	Wyoming
Representative Zip Code:	82001
Representative Phone:	307-286-6237
Representative Email:	reno31@msn.com
Owner Name:	Jamie Floyd
Owner Address:	1602E 11th St

Owner City:	Cheyenne
Owner State:	Wyoming
Owner Zip Code:	82001
Owner Phone:	307-286-6237
Owner Email:	reno31@msn.com
Who is the primary contact regarding this application?	Applicant
Letter of Authorization	allstar letterauth.pdf
Project Location (Street Address or General Location):	1602 E 11th St Cheyenne wyoming 82001
Assessor's Parcel ID number(s)	PIDN: 14663242100800
Total Project Area	4356
Existing Zoning	CB - Community Business
Requested Zoning	MUB - Mixed-use Business Emphasis

Application-Specific Questions

Written Statement	rezone rebuild allstar grooming with MUB and UU overlay
Zoning Map	All Star Dog Grooming. site PDF.pdf
Notification Letter	neighbor-notification-letter-template.docx
Supporting Documents / Information	All Star Dog Grooming. site PDF.pdf Allstar interior with dementions.pdf

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.	Acknowledgement of this review criteria
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The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

Name of signatory: jamie floyd

A handwritten signature in black ink, appearing to read 'Jamie Floyd', with a stylized flourish at the end.

[Link to signature](#)

Please enter an email address for an email receipt.

reno31@msn.com

A TRACT OF LAND SITUATE IN LOT 5, BLOCK 486, ORIGINAL CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

THE SOUTH HALF (5%) OF LOT 5, BLOCK 486, ORIGINAL CITY OF CHEYENNE.

SAID PARCEL CONTAINS 4,356 SW. FT. MORE OR LESS.

EXISTING ZONING: CB – COMMUNITY BUSINESS

PROPOSED ZONING: MUB – MIXED USE BUSINESS EMPHASIS

AREA TO BE RE ZONED TO "MUR"

I COTTON D. JONES, A REGISTERED PROFESSIONAL LAND SURVEYOR IN THE STATE OF WYOMING, HEREBY STATE THAT THIS ZONE CHANGE FOR SOUTH PLATS (5%) OF LOT 5, BLOCK 486, ORIGINAL CITY OF CHEYENNE, WAS PREPARED FROM OFFICIAL PLATS AND DEEDS OF RECORD BY ME OR UNDER MY DIRECT SUPERVISION DURING THE MONTH OF DECEMBER 2021, AND CORRECTLY REPRESENTS THE LAND DEPICTED HEREON TO THE BEST OF MY KNOWLEDGE.

- 1.) BASIS OF BEARINGS ARE BASED ON WYOMING STATE PLANE EAST ZONE GROUND.
- 2.) SUBJECT PROPERTY DOES NOT FALL WITHIN THE SPECIAL 100 YEAR FLOOD HAZARD AREA AS SHOWN ON F.E.M.A. MAP PANEL NO. 56021C1093F DATED SEPTEMBER 27, 2012.

ROBIN R. MURPHY
1602 EAST 11TH STREET
CHEYENNE, WY 82001

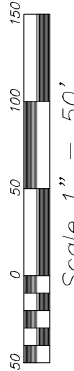
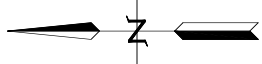
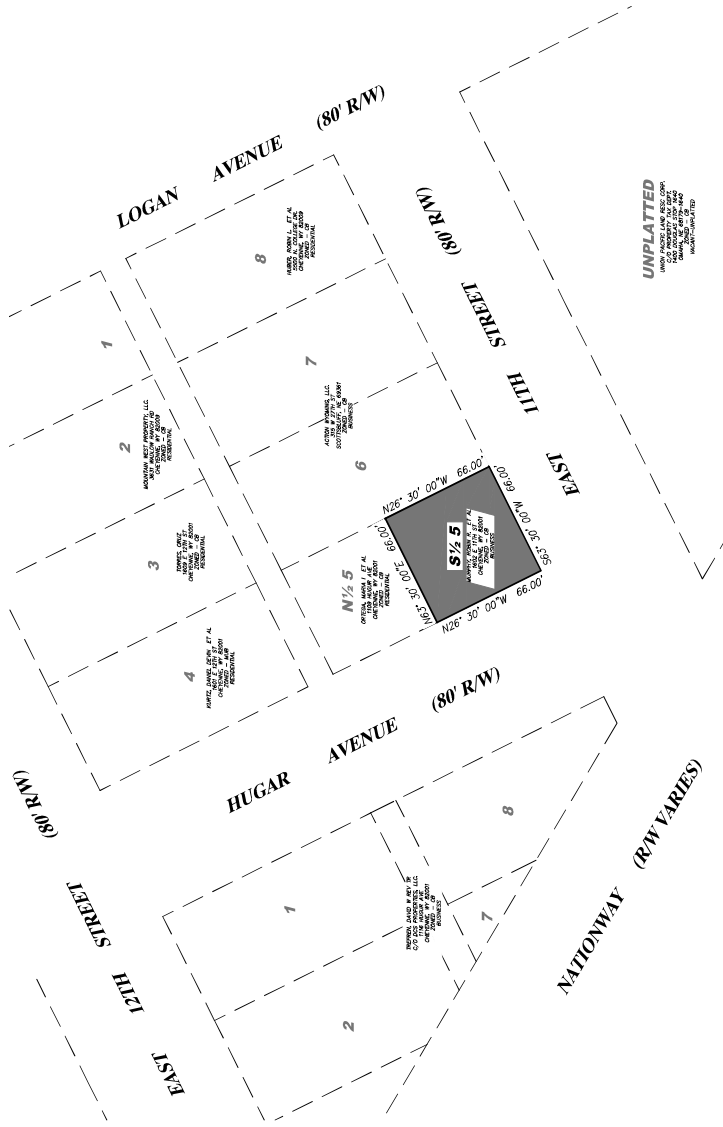
JONES LAND SURVEYING, INC.
6750 SAY KALLY RD.
CHEYENNE, WY 82009
(307) 637-7107

**SOUTH HALF (S^{1/2})
LOT 5, BLOCK 486,
(1602 E. 11TH STREET)**

JONES LAND SURVEYING, INC.

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82090 Ph: 307-637-7107
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Licensed In:
WY, CO, MT, SD,
ND, ID, UT, NV



FILING RECORD

